

glad to see it was in your mind as well as in my hands.

“ In the nomination which your Majesty made of the judges to whom it should be directed, your Majesty could not name the Lord Chief Justice that now is, (Montague) because he was not then declared ; but you could not leave him out now without discountenance.”

About a twelvemonth subsequently, Oct. 11th, 1617, Bacon thus wrote to Buckingham :*

“ The accounts of the summer circuits, as well as that of the Lent circuit, shall be ready against his Majesty's coming. They [meaning the commissioned judges] will also be ready with some account of their labours concerning Sir Edward Coke's reports, wherein I told them his Majesty's meaning was not to disgrace the person, but to rectify the work, having in his contemplation rather posterity than the present.”

This is the last notice I can find of the proceedings of this very idle court of review. The grave judges, who were appointed as commissioners, must have been disgusted with their task ; no doubt they avail themselves of every plea that would postpone so disagreeable an investigation. The objections to Coke's reports,

* Bacon's Works, vol. vi, p. 174.

raised by Bacon and the other law officers of the crown, were trumpery in the extreme; and Coke's brother lawyers, who knew the depth of his researches, and the industry with which he explored every theme he undertook, could have no other feelings than those of dislike to such an employment.

Coke had long before this received his dismissal from the court of King's Bench. The supersedeas suspending him from his office was dated on the 16th of November, 1616, and it thus tersely expressed the royal pleasure:

"For certain causes now moving us, we will that you shall be no longer our chief justice to hold the pleas before us, and we command you, that you no longer interfere in that office, and by virtue of this presence, we at once remove and exonerate you from this office."*

This warrant, there is no doubt, had been for some time expected by Sir Edward Coke. He knew the power of removal possessed by the King, was fully aware of his displeasure, and that he had taken no steps to avert his indignation. He had, therefore, in preparing himself for the worst, nobly resolved to lose his seat on the bench rather than part with his integrity.

* Harleian MSS.

His enemies endeavoured to show that he was confounded with the loss of his place : for there is in the Birch Manuscripts a letter, dated November 19, 1616, from Mr. John Castle, in which he says —*

“ A thunderbolt has fallen upon my Lord Coke in the King’s Bench, which has overthrown him from the roots. The supersedeas was carried to him, the last week, by Sir George Coppin, who at the presenting of it saw that magnanimity, and supposed greatness of spirit, to fall into a very narrow room, for he received it with dejection and tears.”

It is entirely upon this letter, that the talented author of the “Curiosities of Literature” founds his remarks. “When,” says Mr. D’Israeli,* “Coke was once himself in disgrace, his high spirit sank, without a particle of magnanimity to dignify the fall. His big words, and tyrannical courses, when he could no longer exult, ‘that he was upon his wings again,’ sunk with him as he presented himself, on his knees, to the council table. His disgrace was a thunderbolt which overthrew the haughty lawyer to the roots. When the supersedeas was carried to him by

* No. 4176—64.

† *Curiosities of Literature*, 2nd series, vol. 1, p. 320.